

CORRESPONDENCE · 10 JAN 1997

Registered letter Collorafi

TYPE	DATE	PARTIES
Correspondence	10 Jan 1997	From Bernard Collorafi and his companies

SUMMARY SHEET

Letter from Bernard Collorafi to Denis Hennequin · 10 January 1997

Overview: personal letter from Bernard Collorafi, McDonald's franchisee, to Denis Hennequin, chairman and chief executive of McDonald's France. It follows a meeting held in the presence of Isabelle Kuster and challenges the refusal to allocate to him the Antibes Ouest and Vallauris restaurants.

Key points

Mr Collorafi sets out the damage he considers he is already suffering: compelled to open a drive-through restaurant near his establishment in the Carrefour shopping centre, a decision taken by McDonald's to counter the establishment of a Quick at the Weisweiller roundabout, he puts the fall in turnover of his first restaurant over the past three months at 35%. He fears that the opening of two additional McDonald's restaurants will divert a large share of his customers. Presenting himself as a franchisee for ten years (18th franchisee and 46th restaurant in France), he denounces a policy that would favour another franchisee and McDonald's itself, in a joint venture with Patrick Gilarski. He describes the maintaining of this decision as a “casus belli” and urges Denis Hennequin to reconsider his position.

Significance

Predating the litigation, this letter marks the breaking point: it announces, in explicit terms, the franchisee's determination to defend his interests, foreshadowing the writ of summons that would follow.

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Source: bernardcollorafi.org/en/documents/letter-collorafi-hennequin-casus-belli-antibes-ouest-1997/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.